

26NWCV01421 26NWCV01421

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-17

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Case Number: 26NWCV01421 Hearing Date: September 17, 2026 Dept: P

MARJORIE SPENCER v. BOBBI MIESEN, ET AL.

CASE NO.: 26NWCV01421

HEARING: 09/17/2206 @

9:30 AM

#13

TENTATIVE ORDER

Defendants Bobbi Miesen and Tom Miesen's demurrer to the complaint is MOOT.

Moving party to give notice.

Defendants Bobbi Miesen and Tom Miesen demur to the second through eleventh causes of action in the complaint.

On September 2, 2026, Plaintiff Marjorie Spencer (Plaintiff) filed a First Amended Complaint (FAC).

"A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike." (Code Civ. Proc., § 472, subd. (a).)

Upon the timely filing of the FAC, the complaint is no longer the operative pleading. Thus, the demurrer to the complaint is MOOT.